

STATE OF NEW YORK

8373--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 13, 2025

Introduced by M. of A. KELLES -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to authorizing the town of Cortlandville to discontinue the use of certain parklands

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subject to the provisions of this act, the town of Cortlandville, located in the county of Cortland, acting by and through its governing body and upon such terms and conditions as determined by such body, is hereby authorized to discontinue as parklands and to lease at fair market value to Park Outdoor Advertising of New York, Inc. for a term not to exceed ten years the land more particularly described in section four of this act for the purpose of erecting, maintaining and operating an electronic sign.

2 § 2. Notwithstanding the failure of the town of Cortlandville to seek and receive state legislative authorization to alienate certain parklands as described in section four of this act prior to the parklands being leased to Park Outdoor Advertising of New York, Inc, such alienation is hereby validated, legalized, ratified and confirmed.

3 § 3. The authorization provided in section one of this act shall be effective only upon the condition that the town of Cortlandville, county of Cortland, dedicate all proceeds of the lease toward the acquisition of new parklands and/or capital improvements to existing park and recreational facilities.

4 § 4. The parklands authorized by section one of this act to be discontinued as parklands and leased are described as follows:

5 All that tract or parcel of land situate in the Town of Cortlandville, County of Cortland, and State of New York, being part of military lot #92 and being bounded and described as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD11984-02-5

Beginning at a point on the northerly highway boundary of NYS Route 13, which point being S 50°22'54" W a distance of 141.00 feet from the east line of lands of the Town of Cortlandville (R.O., 2017-920, tax map parcel: 105.00-04-02.2); running THENCE along the northerly highway boundary of NYS Route 13 S 50°22'54" W a distance of 30.00 feet to a point;

running THENCE through the lands of the Town of Cortlandville (R.O., 2017-920, tax map parcel: 105.00-04-02.2) the following three (3) courses:

1. N 39°37'06" W a distance of 40.00 feet to a point;

2. N 50°22'54" E a distance of 30.00 feet to a point;

3. S 39°37'06" E a distance of 40.00 feet to a point;

The last mentioned point being the point and place of beginning containing 0.03 Acres± of land, as shown as 'Proposed Sign Outparcel' on a map by Denkenberger Surveying, P.C. titled 'Survey of the Lands of Town of Cortlandville' dated June 10, 2021 and last revised May 6, 2025.

Excepting and reserving from the above described premises any/all easements of record pertaining to said premises.

§ 5. Should the lands described in section four of this act cease to be used for the purposes described in section one of this act, the lease shall terminate and such lands shall revert to the town of Cortlandville for public park and recreational purposes. At the time of such reversion, the removal of such electronic sign shall take place and the property shall be returned to its previous state, consistent with park and recreational purposes.

§ 6. In the event that the town of Cortlandville received any funding support or assistance from the federal government for the purchase, maintenance or improvement of the parklands set forth in section four of this act, the discontinuance and alienation of such parkland authorized by the provisions of this act shall not occur until the town of Cortlandville has complied with any federal requirements pertaining to the alienation or conversion of parklands, including satisfying the secretary of the interior that the alienation or conversion complies with all conditions which the secretary of the interior deems necessary to ensure the substitution of other lands shall be equivalent in fair market value and usefulness to the lands being alienated or converted.

§ 7. This act shall take effect immediately.